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ICAC

ICAC Integrity Talk

Dept of XXX
City University of Hong Kong

Corruption prevention is your business too!

Hidden crime

Know the laws

Stay vigilant

Prevent corruption

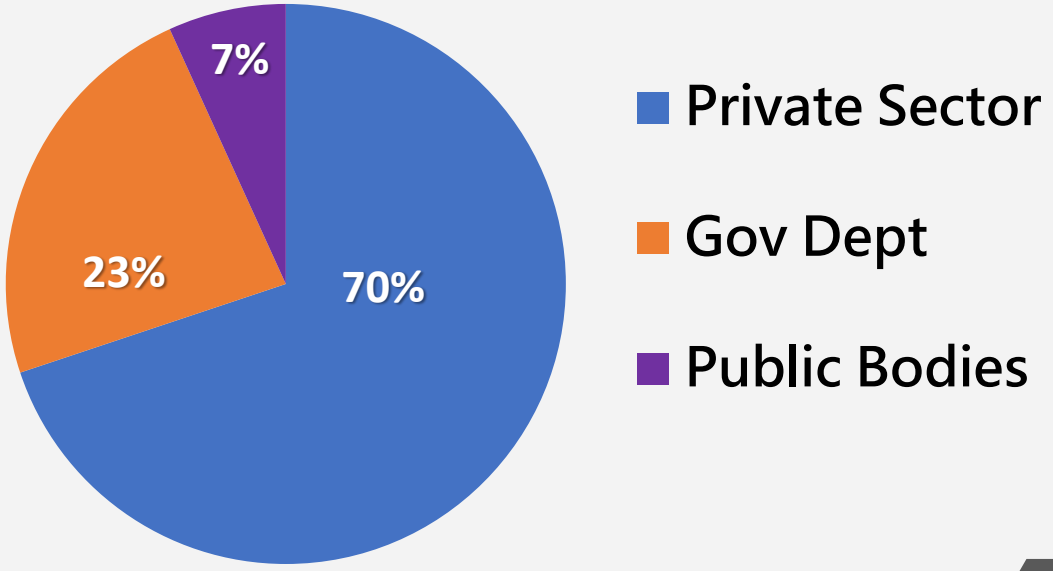
Beware of legal pitfalls

Number of Corruption Complaints

Excluding election complaints

Total Number in 2024

2,058



ZERO TOLERANCE TO CORRUPTION

Common areas of corruption

- Contract procurement
- Sales & marketing
- HR & admin
- Confidential information management

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The Law

Prevention of Bribery Ordinance (POBO)

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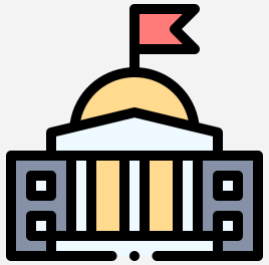

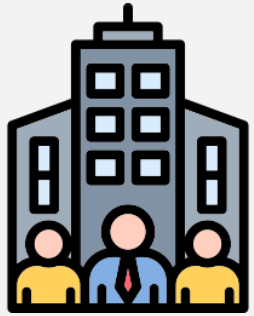

Gov Dept & Public bodies

Private sector

Section 4

Section 9

Prevention of Bribery Ordinance (POBO)

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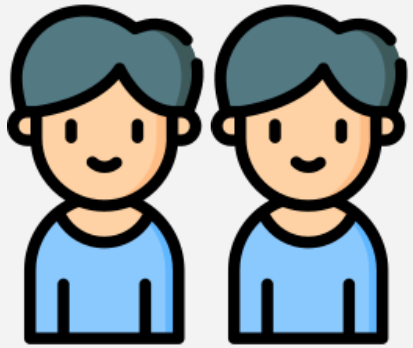
Section 9(1) → Solicit/Accept

Section 9(2) → Offer



Prevention of Bribery Ordinance (POBO) Section 9

Agent	代理人（僱員）Employee
No Approval	未得主事人（僱主）許可 Without principal's (employer's) approval
Advantage	收受利益 Accepts advantage
Act	作出或不作出與主事人（僱主）業務有關 的行為 Carried out an act in relation to the principal's business

Both the offeror and acceptor are guilty.

Maximum penalty：7 years' imprisonment & $500,000 fine

Prevention of Bribery Ordinance (POBO) Section 9

Acceptor

Agent

Advantage

No Approval

Act

Offeror

Anyone

A "Principal and Agent" (PA) Relationship

- **A**gent
- No **A**pproval
- **A**dvantage
- **A**ct

Principal

Employer

(or the person for whom the agent is acting)

Agent

Employee

(or the person who is acting for another)

Trust

“Without principal’s approval”

Agent

No Approval

Advantage

Act

Agent solicited/accepted advantage **without** the principal’s approval.

Superior ≠ Principal

What is advantage (利益)?

- **A**gent
- No **A**pproval
- **A**dvantage
- **A**ct

Gift、loan、fee、reward or commission

Employment or contract

Payment release or discharge of loan or liability

Service or favour

Exercise of any right or power

Except entertainment

What is entertainment (款待)?

Agent

No Approval

~~Advantage~~

Act

- The provision of food or drink for consumption on the occasion when it is provided, AND
- Any other entertainment connected with/provided at the same time.

There is no such thing as a free lunch!

Beware of lavish or frequent entertainment:

- Sweetening trap.
- Obligatory position.
- Conflict of interest.

“Carried out an act in relation to the principal’s business”

Agent

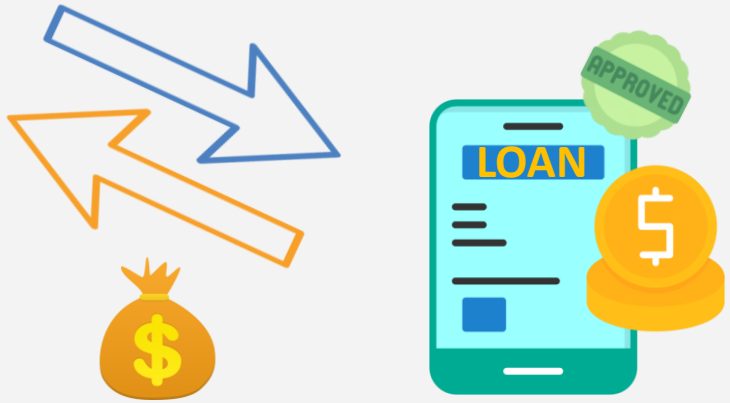
No **A**pproval

Advantage

Act

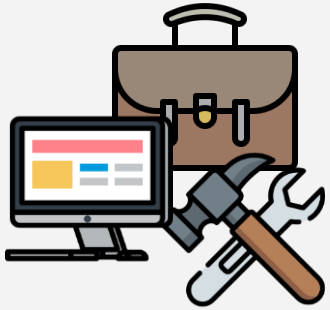
Employee of XXX Bank

An act in relation to the principal’s (XXX Bank) business.



ICAC case study

Common traits of corruption cases



Regardless of job role or position

Exploits work-related conveniences

(?) Greedy / thinking they won't get caught

(?) Lack of understanding of the law

How to obtain principal's approval?

- Agent
- No Approval
- Advantage
- Act

Refer to the company Code of Conduct.

Obtain permission beforehand.

As soon as practicable afterwards.

Micro film: *It's Not Worth It*

"It's not worth it" - Micro Film Series on Business Ethics

ICACChannel
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Not a defence!

POBO Section 11

The recipient:

- did not actually have such power/right to carry out an act;
- did not in fact do so; or
- had no intention to do so.

POBO Section 19

Customs in any profession, trade or calling.

Prevention of Bribery Ordinance (POBO)

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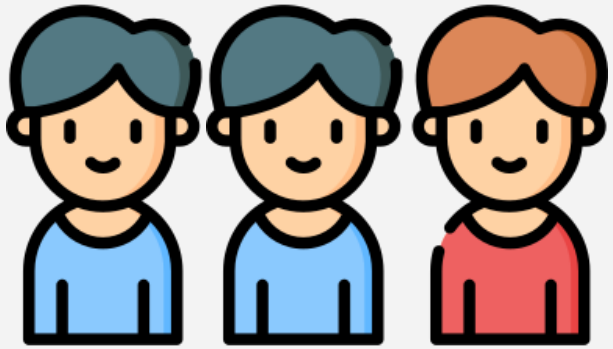
Section 9(1)	Solicit/Accept
Section 9(2)	Offer
Section 9(3)	False document



Prevention of Bribery Ordinance (POBO) Section 9(3)

An agent

Using false/erroneous/defective accounts / documents / receipts

Intends to deceive his principal

Maximum penalty：7 years' imprisonment & $500,000 fine

Prevention of Bribery Ordinance (POBO) Section 9(3)

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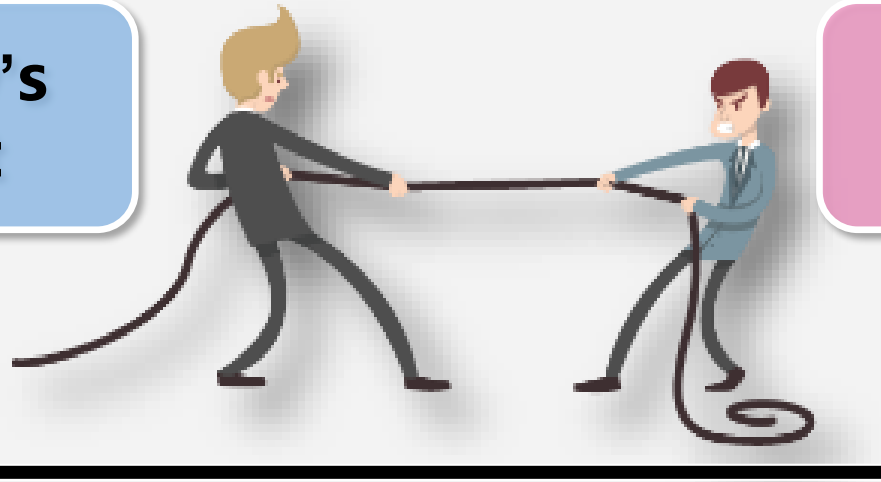
Examples

- False attendance records.
- Using false documents to defraud employee allowances or benefits.
- Misreporting / inflating expenses.
- Forging quotes for goods or services.

An act may not be illegal at first glance but raises concerns.

Conflict of interest (COI)

Company's interest



Personal interest

A conflict of interest situation arises when the private interest of an employee competes or conflicts with the interest of the company.

Possible consequences of COI

Affects judgement

Perception shift

If not properly dealt with

- Misconduct / breach of policy
  - Disciplinary actions
- Advantage
  - POBO S.9
- False documents
  - POBO S.9(3)

Fraud / Deception

Dealing with COI

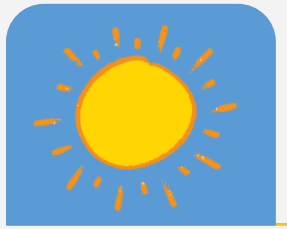
Avoid

Declare

Think thrice, act wisely

Abide by the laws?

Comply with the code of conduct?



Passing the sunshine test?

Can you discuss it openly and without reservation?

Report corruption & enquiries

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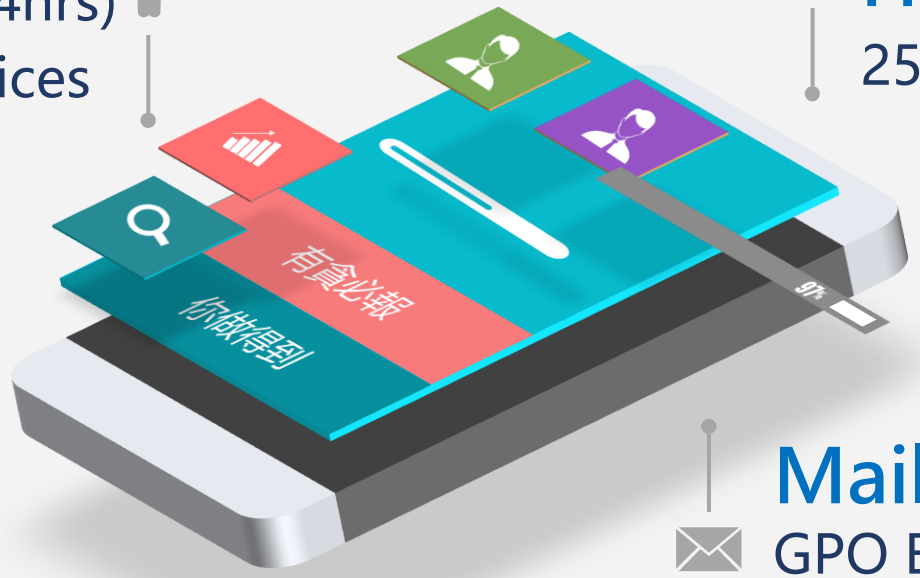
In person

Report Centre (24hrs)
& 7 Regional Offices

Hotline

25 266 366 (24hrs)



Mail

GPO Box 1000

CONFIDENTIAL

All information is kept strictly confidential

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Q & A

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Thank you!